



Bill Number: S.B. 1111

Payne Floor Amendment

**Reference to: APPROPRIATIONS,
TRANSPORTATION AND TECHNOLOGY
S/E Committee amendment**

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Specifies that access to automated license plate reader data is restricted to law enforcement agencies and only when a trackable criminal case number or incident number is provided for the access.
2. Specifies that the prescribed requirements relating to automated license plate reader data and images do not prohibit a law enforcement agency from allowing a vendor to process de-identified or redacted data if the vendor uses the data only for operating, securing, testing or improving the automated license plate reader system.
3. Replaces the prohibition on a third party from intentionally releasing automated license plate reader data with the prohibition on any person from intentionally accessing, using, selling or disseminating any captured data or image of a license plate from an automated license plate reader in violation of the prescribed automated license plate reader requirements.
4. Classifies a violation of the prohibition on accessing or sharing automated license plate reader data as a class 6 felony, except that a third-party vendor is not liable for disclosing data or images under a duly authorized subpoena, warrant or court order.
5. Prohibits a person from accessing automated license plate reader data and images more than 48 hours after notification to law enforcement of an incident or occurrence of a crime unless a search warrant or subpoena is issued for the data.
6. Outlines circumstances in which a search warrant or subpoena is not required to access automated license plate reader images and data, including if:
 - a. the owner of a vehicle consents to access of data and images of the person's own vehicle;
 - b. a vehicle owner reports the vehicle as lost or stolen;
 - c. exigent circumstances exist that make it impractical to obtain a search warrant or subpoena before the exigent circumstances no longer exist;
 - d. searching for evidence relating to a blue, turquoise, amber or seek and find alert; and
 - e. searching for evidence relating to a violation of human trafficking or sex trafficking.
7. Requires a law enforcement agency to ensure that all automated license plate reader data, rather than only downloaded data, is accessible only through a password-protected system as prescribed.
8. Makes technical changes.

Amendment explanation prepared by Kaytie Sherman
03/03/2026

PAYNE FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1111

(Reference to APPROPRIATIONS, TRANSPORTATION AND TECHNOLOGY S/E Committee amendment)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Strike everything after the enacting clause and insert:

3 "Section 1. Title 28, chapter 3, Arizona Revised Statutes, is
4 amended by adding article 23, to read:

5 ARTICLE 23. AUTOMATED LICENSE PLATE READERS

6 28-1241. Definitions

7 IN THIS ARTICLE, UNLESS THE CONTEXT OTHERWISE REQUIRES:

8 1. "AUTOMATED LICENSE PLATE READER" MEANS A TECHNOLOGY THAT
9 PROVIDES STATIONARY OR MOBILE AUTOMATED DETECTION OF LICENSE PLATES AND
10 THAT CAPTURES DATA ASSOCIATED WITH LICENSE PLATES FOR OFFICIAL LAW
11 ENFORCEMENT PURPOSES.

12 2. "OFFICIAL LAW ENFORCEMENT PURPOSES" INCLUDES THE IDENTIFICATION
13 OF STOLEN OR WANTED VEHICLES, STOLEN LICENSE PLATES, HUMAN TRAFFICKING AND
14 MISSING PERSONS, THE GATHERING OF INFORMATION RELATED TO ACTIVE WARRANTS,
15 SUSPECT INTERDICTION AND STOLEN PROPERTY RECOVERY.

16 28-1242. Automated license plate readers; allowable uses;
17 training; authorized access

18 A. A LAW ENFORCEMENT AGENCY SHALL USE AN AUTOMATED LICENSE PLATE
19 READER ONLY FOR THE FOLLOWING PURPOSES:

20 1. LEGITIMATE AND OFFICIAL LAW ENFORCEMENT PURPOSES.

21 2. IN CONJUNCTION WITH ANY PATROL OPERATION OR CRIMINAL LAW
22 ENFORCEMENT INVESTIGATION.

23 3. CANVASSING LICENSE PLATES AROUND ANY CRIME SCENE.

24 4. CHECKING ANY PARTIAL LICENSE PLATE NUMBER REPORTED DURING A
25 MAJOR CRIME TO IDENTIFY PERSONS OF INTEREST.

26 B. IF PRACTICABLE, A LAW ENFORCEMENT OFFICER SHALL VERIFY AN
27 AUTOMATED LICENSE PLATE READER RESPONSE THROUGH AN AUTHORIZED CENTRAL LAW
28 ENFORCEMENT DATABASE THAT IS ACCESSIBLE TO LAW ENFORCEMENT OFFICERS IN

1 THIS STATE BEFORE TAKING ENFORCEMENT ACTION BASED ONLY ON AN ALERT FROM AN
2 AUTOMATED LICENSE PLATE READER.

3 C. AN EMPLOYEE OF A LAW ENFORCEMENT AGENCY MAY NOT OPERATE AN
4 AUTOMATED LICENSE PLATE READER UNTIL THE EMPLOYEE SUCCESSFULLY COMPLETES
5 LAW ENFORCEMENT AGENCY-APPROVED TRAINING FOR THE AUTOMATED LICENSE PLATE
6 READER.

7 D. AN OPERATOR OF AN AUTOMATED LICENSE PLATE READER MAY NOT ACCESS
8 DATA FROM AN AUTHORIZED CENTRAL LAW ENFORCEMENT DATABASE THAT IS
9 ACCESSIBLE TO LAW ENFORCEMENT OFFICERS IN THIS STATE OR A NATIONAL LAW
10 ENFORCEMENT DATABASE UNLESS THE OPERATOR IS AUTHORIZED TO ACCESS THE DATA.

11 E. [NOTWITHSTANDING SECTION 28-1243, SUBSECTION D,] DATA FROM AN
12 AUTOMATED LICENSE PLATE READER MAY [NOT] BE ACCESSED [UNLESS] [BY LAW
13 ENFORCEMENT AGENCIES ONLY IF] A TRACKABLE CRIMINAL CASE NUMBER OR A
14 TRACKABLE INCIDENT NUMBER IS PROVIDED FOR THE DATA BEING ACCESSED.

15 28-1243. Automated license plate readers; data and image
16 collection; requirements; violation;
17 classification

18 A. ALL DATA AND IMAGES COLLECTED BY AN AUTOMATED LICENSE PLATE
19 READER ARE FOR OFFICIAL USE BY THE LAW ENFORCEMENT AGENCY THAT COLLECTED
20 THE DATA AND IMAGES. [THIS SECTION DOES NOT PROHIBIT THE LAW ENFORCEMENT
21 AGENCY FROM ALLOWING A VENDOR TO PROCESS DE-IDENTIFIED OR REDACTED
22 DERIVATIVES OF DATA OR IMAGES COLLECTED BY AN AUTOMATED LICENSE PLATE
23 READER PURSUANT TO A WRITTEN AGREEMENT IF THE VENDOR USES THE DATA OR
24 IMAGES ONLY TO OPERATE, SECURE, TEST OR IMPROVE THE AUTOMATED LICENSE
25 PLATE READER SYSTEM.]

26 B. ANY DATA OR IMAGES COLLECTED BY AUTOMATED LICENSE PLATE READERS
27 ARE NOT SUBJECT TO A PUBLIC RECORDS REQUEST, EXCEPT A LAW ENFORCEMENT
28 AGENCY SHALL SHARE ANY DATA OR IMAGES COLLECTED BY AN AUTOMATED LICENSE
29 PLATE READER PURSUANT TO A DULY AUTHORIZED SUBPOENA OR ANY OTHER LAW.

30 C. A LAW ENFORCEMENT AGENCY THAT OPERATES AN AUTOMATED LICENSE
31 PLATE READER IS RESPONSIBLE FOR ENSURING PROPER COLLECTION AND RETENTION
32 OF THE DATA AND IMAGES COLLECTED.

33 ~~[D. A THIRD PARTY THAT INTENTIONALLY RELEASES ANY AUTOMATED LICENSE~~
34 ~~PLATE READER DATA OR IMAGES WITHOUT AUTHORIZATION FROM THE LAW ENFORCEMENT~~
35 ~~AGENCY THAT COLLECTED THE DATA IS GUILTY OF A CLASS 1 MISDEMEANOR AND~~
36 ~~SHALL PAY A FINE OF NOT LESS THAN \$500 PER IMAGE OR DATA RELEASED, EXCEPT~~
37 ~~THAT A THIRD PARTY THAT PROVIDES AN AUTOMATED LICENSE PLATE READER TO A~~
38 ~~LAW ENFORCEMENT AGENCY MAY DISCLOSE DATA OR IMAGES COLLECTED BY THE~~
39 ~~AUTOMATED LICENSE PLATE READER PURSUANT TO A DULY AUTHORIZED SUBPOENA,~~
40 ~~WARRANT OR COURT ORDER.]~~

41 [D. A PERSON MAY NOT ACCESS AN IMAGE OF A LICENSE PLATE OR ANY
42 OTHER ACCOMPANYING DATA THAT IS CAPTURED BY AN AUTOMATIC LICENSE PLATE
43 READER MORE THAN FORTY-EIGHT HOURS AFTER NOTIFICATION TO LAW ENFORCEMENT
44 OF AN INCIDENT OR AN OCCURRENCE OF A CRIME UNLESS A JUDGE HAS ISSUED A
45 SEARCH WARRANT OR A CITY ATTORNEY, COUNTY ATTORNEY OR THE ATTORNEY GENERAL
46 ISSUES A SUBPOENA FOR THE IMAGE OR DATA, EXCEPT A SEARCH WARRANT OR
47 SUBPOENA IS NOT REQUIRED FOR ANY OF THE FOLLOWING CIRCUMSTANCES:

1 1. IF THE OWNER OF A VEHICLE GIVES VOLUNTARY CONSENT AUTHORIZING
2 THE OPERATOR OF AN AUTOMATIC LICENSE PLATE READER TO ACCESS DATA OR IMAGES
3 OF THE OWNER'S VEHICLE.

4 2. IF THE OWNER OF A VEHICLE FILES A REPORT WITH A LAW ENFORCEMENT
5 AGENCY ATTESTING THAT THE VEHICLE IS LOST OR STOLEN.

6 3. IF EXIGENT CIRCUMSTANCES MAKE IT IMPRACTICAL TO OBTAIN A SEARCH
7 WARRANT OR SUBPOENA BEFORE THE EXIGENT CIRCUMSTANCES NO LONGER EXIST.

8 4. IF SEARCHING FOR EVIDENCE RELATED TO AN AMBER ALERT.

9 5. IF SEARCHING FOR EVIDENCE RELATED TO AN ALERT ISSUED PURSUANT TO
10 SECTION 41-1726, 41-1728 OR 41-1728.01.

11 6. IF SEARCHING FOR EVIDENCE RELATED TO A VIOLATION OF SECTION
12 13-1307, 13-1308 OR 13-3212.]

13 E. A LAW ENFORCEMENT AGENCY THAT USES AN AUTOMATED LICENSE PLATE
14 READER SHALL:

15 1. ENSURE ALL AUTOMATED LICENSE PLATE READER DATA [~~THAT IS~~
16 ~~DOWNLOADED~~] IS ACCESSIBLE ONLY THROUGH A PASSWORD-PROTECTED SYSTEM CAPABLE
17 OF DOCUMENTING ALL ACCESS INFORMATION BY THE NAME OF THE PERSON WHO
18 ACCESSED THE DATA AND THE DATE AND TIME OF ACCESS.

19 2. ENSURE ANY PERSON WHO IS APPROVED TO ACCESS AUTOMATED LICENSE
20 PLATE READER DATA AND IMAGES PURSUANT TO THIS ARTICLE IS ALLOWED TO ACCESS
21 THE DATA AND IMAGES ONLY FOR OFFICIAL LAW ENFORCEMENT PURPOSES.

22 3. RELEASE AUTOMATED LICENSE PLATE READER DATA AND IMAGES TO OTHER
23 AUTHORIZED AND VERIFIED LAW ENFORCEMENT OFFICIALS AND AGENCIES FOR
24 OFFICIAL LAW ENFORCEMENT PURPOSES ONLY IF THE DATE AND TIME OF ACCESS TO,
25 THE REASON FOR ACCESS TO AND THE NAME OF THE AGENCY THAT ACCESSED THE
26 AUTOMATED LICENSE PLATE READER DATA AND IMAGES ARE DOCUMENTED IN THE
27 SYSTEM, UNLESS THE LAW ENFORCEMENT AGENCY'S POLICIES PROHIBIT THE RELEASE
28 OF LICENSE PLATE READER DATA AND IMAGES.

29 4. PERFORM ANNUAL SYSTEM AUDITS OF THE LAW ENFORCEMENT AGENCY'S
30 AUTOMATED LICENSE PLATE READER SYSTEM.

31 28-1244. Violations; classification

32 [A PERSON WHO WILFULLY AND INTENTIONALLY QUERIES, ACCESSES, USES,
33 SELLS, SHARES OR DISSEMINATES AN IMAGE OF A LICENSE PLATE OR ANY CAPTURED
34 DATA FROM AN AUTOMATED LICENSE PLATE READER IN VIOLATION OF THIS ARTICLE
35 IS GUILTY OF A CLASS 6 FELONY, EXCEPT THAT A THIRD-PARTY VENDOR IS NOT
36 LIABLE UNDER THIS SECTION FOR DISCLOSING AUTOMATED LICENSE PLATE READER
37 DATA OR IMAGES PURSUANT TO A DULY AUTHORIZED SUBPOENA, WARRANT OR COURT
38 ORDER.]"

39 Enroll and engross to conform

40 Amend title to conform

KEVIN PAYNE

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03/03/2026

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C: JR

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